

Service Agreement

SERVICE AGREEMENT

THIS SERVICE AGREEMENT (the "Agreement") is entered into on the date of last signature (the "Effective Date") by and between TechVendor Inc., a Delaware corporation ("Vendor"), and ClientCorp Ltd. ("Client").

1. SERVICES

Vendor shall provide the services described in Exhibit A (the "Services"). Vendor may subcontract any or all of its obligations without Client's prior written consent.

2. PAYMENT TERMS

Client shall pay Vendor the fees set forth in Exhibit B. All fees are non-refundable. Vendor may increase fees by up to 25% annually upon 15 days' written notice. Late payments shall incur interest at 5% per month, compounded daily. Client shall pay all fees within 15 days of invoice date, regardless of whether Services have been performed satisfactorily. If Client disputes any invoice, Client must still pay the full amount and seek reimbursement later. Vendor reserves the right to suspend all Services immediately if any invoice remains unpaid for more than 3 days after the due date, without liability.

3. TERM AND TERMINATION

This Agreement shall have an initial term of 36 months. Thereafter, this Agreement shall automatically renew for successive 12-month periods unless either party provides written notice of non-renewal at least 180 days prior to the end of the then-current term. Client may terminate this Agreement for convenience only upon 365 days' prior written notice and payment of a termination fee equal to 80% of the remaining fees due under the Agreement. Vendor may terminate this Agreement immediately upon written notice if Client breaches any term, fails to make payment when due, or for any reason or no reason at all.

4. LIABILITY AND INDEMNIFICATION

VENDOR'S TOTAL LIABILITY UNDER THIS AGREEMENT SHALL NOT EXCEED THE TOTAL FEES PAID BY CLIENT IN THE PRECEDING 12 MONTHS. IN NO EVENT SHALL VENDOR BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING LOST PROFITS OR LOSS OF DATA. Vendor shall not be liable for any damages resulting from service interruptions, data breaches, or security incidents. Client agrees to indemnify, defend, and hold Vendor harmless from any and all claims arising out of Client's use of the Services, including claims caused solely by Vendor's negligence or breach of this Agreement.

5. INTELLECTUAL PROPERTY

All intellectual property rights in any deliverables, work product, software, or materials created by Vendor in connection with the Services shall be owned exclusively by Vendor. Vendor grants Client a non-exclusive, non-transferable, non-sublicensable, revocable license to use the deliverables solely during the term of this Agreement. Any improvements, suggestions, or feedback provided by Client shall be automatically assigned to Vendor free of charge.

6. CONFIDENTIALITY

Vendor may disclose Client's confidential information to its affiliates, subcontractors, and agents without restriction. Vendor's confidentiality obligations expire 12 months after the Effective Date. Vendor may use Client's confidential information for any purpose not expressly prohibited by law.

7. DATA PROTECTION AND SECURITY

Client acknowledges that Vendor does not guarantee the security of Client's data. Vendor may process Client's data in any country where Vendor operates. Client is solely responsible for maintaining backups of all data. Vendor may delete Client's data at any time upon 7 days' notice.

8. GOVERNING LAW AND DISPUTE RESOLUTION

This Agreement shall be governed by the laws of the Republic of Freedonia. Any disputes arising out of this Agreement shall be resolved exclusively through binding arbitration in the Republic of Freedonia, and Client waives any right to participate in a class action. Each party shall bear its own legal costs regardless of outcome.